

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DAVID SCHLETT,

Plaintiff,

-v-

THE CITY OF NEW YORK, a municipal
entity; New York City Police Officers
ALLAN AVELLA, (Shield No. 21757) and
RAFAEL MORALES,

Defendants.

Index No.

SUMMONS

Plaintiff designates Bronx County as
the County of Venue

Venue is based upon location where
claims arose.

TO THE ABOVE-NAMED DEFENDANTS:

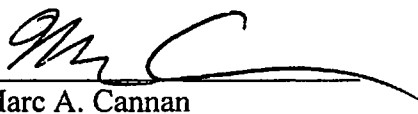
YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at his
address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer
must be served within 20 days after such service of the summons, excluding the date of service.
If the summons was not personally delivered to you within the State of New York, the answer
must be served within 30 days after service of the summons is complete as provided by law. If you
do not serve an answer to the attached complaint within the applicable time limitation, a judgment
may be entered against you, by plaintiff, for the relief demanded in the complaint, without further
notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the
County of Bronx. This action is brought in the County of New York because it is the place in
which one or more defendants to this action reside.

Dated: February 26, 2018
New York, New York

By:



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BELDOCK LEVINE & HOFFMAN LLP
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To: CITY OF NEW YORK
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

Police Officer ALLAN AVELLA (Shield No. 21757)
One Police Plaza, Military and Extended Leave Office
New York, New York 10007

Police Officer RAFAEL MORALES
NYPD 44th Precinct
2 East 169th Street
New York, New York 10452

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

----- X
DAVID SCHLETT,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity; New
York City Police Officers ALLAN AVELLA, (Shield
No. 21757) and RAFAEL MORALES,

Defendants.
----- X

COMPLAINT

JURY TRIAL DEMANDED

Index No.

Plaintiff DAVID SCHLETT ("Mr. SCHLETT" or "Plaintiff"), by his attorneys Beldock
Levine & Hoffman LLP, as and for his complaint, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought under 42 U.S.C. § 1983 for violation of rights guaranteed to Plaintiff by the Fourth and Fourteenth Amendments to the United States Constitution, and violations of the common law and the Constitution of the State of New York by defendants CITY OF NEW YORK ("CITY"), New York City Police Department ("NYPD") Police Officers ALLAN AVELLA (Shield No. 21757) ("P.O. AVELLA") and RAFAEL MORALES ("P.O. MORALES")

2. Plaintiff seeks redress for substantial injuries he suffered when the individual defendants caused him to be unlawfully detained, searched, arrested, robbed and maliciously prosecuted. The defendant police officers approached Plaintiff as he was exiting his truck to visit friends for a belated Thanksgiving dinner in the Bronx, New York, and, without any suspicion of illegal activity and without obtaining Plaintiff's consent, stopped and searched Plaintiff and Plaintiff's vehicle. Although the police officers did not find any evidence of criminal activity, they

falsely charged Plaintiff with criminal possession of a weapon and stole Plaintiff's money. The criminal charge against Plaintiff was eventually dismissed.

3. Plaintiff seeks (i) compensatory damages for psychological and emotional distress, and financial loss caused by the illegal actions of the defendants; (ii) punitive damages to deter other injuries or reckless deviations from well-settled constitutional law; and (iii) costs, attorney's fees, and such other and further relief as this Court deems equitable and just.

JURISDICTION

4. This is a civil rights action brought pursuant to 42 U.S.C. § 1983 for violations of Plaintiff's rights secured by the Fourth and Fourteenth Amendments to the United States Constitution; and for violations of Plaintiff's rights under Article 1 §§ 1, 6, and 12 of the New York State Constitution and the statutory and common law of New York State.

5. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

6. Pursuant to CPLR 503 and 504, venue is proper in the Bronx because it is the county where the events giving rise to this action took place.

JURY DEMAND

7. Plaintiff demands a trial by jury in this action on each and every one of their claims for which jury trial is legally available.

THE PARTIES

8. Plaintiff DAVID SCHLETT is a citizen of the United States. He was at all times relevant to this action, a resident of Richmond County, City and State of New York.

9. Defendant CITY is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and does maintain the NYPD which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers.

10. P.O. AVELLA and P.O. MORALES were NYPD Police Officers who, *inter alia*, unlawfully stopped, searched, and falsely arrested Plaintiff, without suspicion of any illegal activity, lodged false criminal charges against him, and stole Plaintiff's money. Upon information and belief, defendants P.O. AVELLA and P.O. MORALES are still NYPD Police Officers.

11. At all times relevant herein, P.O. AVELLA and P.O. MORALES acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the CITY and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the CITY and/or the NYPD.

12. At the times relevant herein, P.O. AVELLA and P.O. MORALES violated clearly established rights and standards under the Fourth and Fourteenth Amendments to the United States Constitution and under equivalent New York State constitutional provisions, of which reasonable police officers in their circumstances would have known.

ADMINISTRATIVE PROCEEDINGS

13. Plaintiff served his Notice of Claim upon the City of New York electronically, using the eClaim system on the New York City Comptroller's website on February 24, 2017, within ninety days of the events giving rise to Plaintiff's claims.

14. Plaintiff attended a hearing pursuant to section 50-h of the New York General Municipal Law on December 4, 2017.

15. More than thirty days have elapsed since Plaintiff served his Notice of Claim and the CITY has not offered adjustment or payment thereof.

16. This action is filed within one year and ninety days of the events giving rise to Plaintiff's claims.

STATEMENT OF FACTS

17. Mr. SCHLETT, a military veteran, is a self-employed, Staten Island Resident who works as a general contractor.

18. On November 26, 2016, Mr. SCHLETT drove his vehicle to a friend's house in the Bronx, New York, for a belated Thanksgiving dinner.

19. Shortly after 5:00 p.m., Mr. SCHLETT parked his vehicle at or about Inwood Avenue and Clarke Place, Bronx, New York.

20. Mr. SCHLETT exited his vehicle and began to gather the food items he was bringing to the dinner.

21. As Mr. SCHLETT was gathering his food items, he was approached by P.O. AVELLA and P.O. MORALES.

22. P.O. AVELLA asked Mr. SCHLETT, "Is this your vehicle?"

23. Mr. SCHLETT responded that it was his vehicle.

24. P.O. AVELLA told Mr. SCHLETT that there had been a lot of break-ins in the neighborhood and that they were checking to see what was going on.

25. P.O. MORALES maneuvered Mr. SCHLETT away from his vehicle and began to question him.

26. Immediately, without reasonable suspicion to believe that Mr. SCHLETT was engaged in any unlawful activity, and without obtaining Mr. SCHLETT's consent, P.O. AVELLA entered Mr. SCHLETT's vehicle and began to search it.

27. Mr. SCHLETT asked why P.O. AVELLA was searching his vehicle.

28. P.O. AVELLA responded from inside Mr. SCHLETT's vehicle, "Anything in plain sight."

29. Without reasonable suspicion to believe that Mr. SCHLETT was engaged in any unlawful activity, and without obtaining Mr. SCHLETT's consent, P.O. MORALES subjected Mr. SCHLETT to a search of his person.

30. P.O. MORALES took Mr. SCHLETT's wallet.

31. After several minutes of searching through Mr. SCHLETT's vehicle, P.O. AVELLA exited the vehicle with a folding sports knife he had found in the area of the gear shift.

32. The knife was a "Swift Cut" multi-use folding knife, model BTC207, made by Boomerang Tool Company, an outdoors sporting goods manufacturer.

33. To open the knife, the user had to hold the knife handle with one hand while pulling the blade out of the handle with their other hand.

34. The knife could not be opened by the force of gravity or the application of centrifugal force.

35. The knife had been given to Mr. SCHLETT by his brother-in-law who has been a police officer for the Port Authority of New York and New Jersey for over twenty years.

36. Mr. SCHLETT's brother-in-law had given Mr. SCHLETT that specific model of knife because he knew it was not illegal to possess in New York.

37. P.O. AVELLA told Mr. SCHLETT they had a problem.

38. Mr. SCHLETT asked why there was a problem, and P.O. AVELLA responded, “The knife.”

39. P.O. AVELLA then held up the knife and opened it by holding the knife handle with one hand while pulling the blade out of the handle with his other hand.

40. When P.O. AVELLA had fully opened the knife, he told Mr. SCHLETT that the knife was illegal because of the way it locked into the open position.

41. P.O. AVELLA then re-entered Mr. SCHLETT’s vehicle and continued to search.

42. After several more minutes, P.O. AVELLA exited the vehicle and Mr. SCHLETT was placed in handcuffs.

43. Mr. SCHLETT asked what he was being arrested for; P.O. AVELLA responded, “The knife.”

44. Mr. SCHLETT was transported to the 44th Precinct, where he was processed and placed in a holding cell.

45. While he was in police custody, Mr. SCHLETT repeatedly asked police officers to make a phone call so that he could notify his friends who were waiting for him about what had happened.

46. The police officers never allowed Mr. SCHLETT to make a phone call while he was in their custody.

47. After being held in custody for several hours, Mr. SCHLETT was given a Desk Appearance Ticket.

48. The Desk Appearance Ticket was prepared by P.O. AVELLA and falsely charged Mr. SCHLETT with Criminal Possession of a Weapon in the 4th Degree (PL 265.01(1)), a Class A Misdemeanor.

49. In the Desk Appearance Ticket, P.O. AVELLA falsely stated that he had determined that the knife found in Mr. SCHLETT's vehicle was a gravity knife and that the blade of the knife was released from the handle by use of centrifugal force.

50. While Mr. SCHLETT was being released, P.O. AVELLA returned Mr. SCHLETT's belongings, which the police officers had previously taken from him, which included his wallet.

51. Mr. SCHLETT immediately checked his wallet and discovered that all of the money that had been in the wallet before the police had taken it from him, approximately \$120.00, was no longer in the wallet.

52. Mr. SCHLETT asked P.O. AVELLA what had happened to the money that had been in his wallet.

53. P.O. AVELLA responded, "There was no money in your wallet! You're a criminal and you get what you deserve!"

54. P.O. AVELLA continued to berate Mr. SCHLETT and asked in a threatening manner, "Do you want to spend the weekend on Riker's Island?"

55. P.O. AVELLA placed a spiral bound notepad in which the items that the police had taken from Mr. SCHLETT, and which were being returned to him, were handwritten with a line underneath.

56. The handwriting did not indicate that Mr. SCHLETT's wallet had contained any money.

57. P.O. AVELLA warned Mr. SCHLETT, "If you want to get out of here tonight, sign here!" and indicated the line underneath the list of Mr. SCHLETT's belongings

58. In fear for his safety and his liberty, Mr. SCHLETT signed the notebook and was released from police custody.

59. Mr. SCHLETT was forced to return to Bronx County Criminal Court numerous times to defend himself against the false charges that had been lodged against him.

60. Mr. SCHLETT filed a complaint with the NYPD Internal Affairs Bureau concerning his mistreatment by P.O. AVELLA and P.O. MORALES on November 26, 2016.

61. Upon information and belief, the NYPD Internal Affairs Bureau investigated Mr. SCHLETT's complaint and notified the Civilian Complaint Review Board ("CCRB") about his case.

62. On or about June 19, 2017, Mr. SCHLETT was informed that, after a "thorough and impartial investigation," the CCRB was substantiating his charges against P.O. AVELLA and P.O. MORALES, which included several counts of "Abuse of Authority" and one count of "Discourtesy."

63. Shortly after the CCRB substantiated Mr. SCHLETT's charges against P.O. AVELLA and P.O. MORALES, the criminal charges against Mr. SCHLETT were dismissed and sealed pursuant to NYCPL 160.50.

64. At all times relevant herein, the individual defendant police officers were engaged in a joint venture. The individual police officers assisted each other in performing the various actions described and lent their physical presence and the support and authority of their office to each other during said events.

65. Defendants' conduct caused Plaintiff to suffer loss of liberty, emotional and psychological pain, loss of productivity, financial loss, embarrassment, humiliation, harm to his reputations, and deprivation of his constitutional rights.

FIRST CAUSE OF ACTION**42 U.S.C. § 1983 – Violations of Fourth and Fourteenth Amendment Rights
(Individual Defendants)**

66. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

67. In committing the acts and omissions complained of herein, defendants acted under color of state law to deprive Plaintiff of certain constitutionally protected rights under the Fourth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable search and seizure of his person;
- b. the right to be free from arrest without probable cause;
- c. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiff was aware and to which he did not consent;
- d. the right to be free from the lodging of false criminal charges against him by police officers;
- e. the right to be free from malicious prosecution by police officers, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in Plaintiff's favor; and
- f. the right to be free from deprivation of liberty without due process of law.

68. As a direct and proximate result of defendants P.O. AVELLA's and P.O. MORALES' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

69. The unlawful conduct of defendants P.O. AVELLA and P.O. MORALES was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION

**Violations of the New York State Constitution
(Individual Defendants)**

70. Plaintiff realleges and incorporates by reference each-and-every allegation set forth in the foregoing paragraphs as if fully set forth herein.

71. Defendants subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving Plaintiff of rights, privileges, and immunities guaranteed by Article 1, §§ 1, 6, and 12 of the New York State Constitution, including, without limitation, the following:

- a. Plaintiff was deprived of his rights and privileges guaranteed by Article 1, § 1 of the New York State Constitution;
- b. Plaintiff was deprived of his right to due process guaranteed by Article 1, § 6 of the New York State Constitution; and
- c. Plaintiff was deprived of his right to be free from unreasonable searches and seizures guaranteed by Article 1, § 12 of the New York State Constitution.

72. As a direct and proximate result of defendants P.O. AVELLA's and P.O. MORALES' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered the injuries and damages set forth above.

73. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

**THIRD CAUSE OF ACTION
Assault and Battery
(Against the Individual Defendants)**

74. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

75. Defendants P.O. AVELLA and P.O. MORALES, without just cause, wilfully and maliciously used physical force against Plaintiff causing him injuries.

76. Defendants P.O. AVELLA and P.O. MORALES committed the foregoing acts intentionally, wilfully, and with malicious disregard for Plaintiff's rights, and are therefore liable for punitive damages.

FOURTH CAUSE OF ACTION
False Imprisonment
(Against the Individual Defendants)

77. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

78. Defendants P.O. AVELLA and P.O. MORALES, through the foregoing acts, caused Plaintiff to be wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiff was aware and to which he did not consent.

79. Defendants P.O. AVELLA and P.O. MORALES committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

FIFTH CAUSE OF ACTION
Malicious Prosecution
(Against the Individual Defendants)

80. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

81. Defendants P.O. AVELLA and P.O. MORALES, through the foregoing acts, maliciously commenced a criminal proceeding against Plaintiff, which ended in his favor, without probable cause to believe Plaintiff was guilty of the crimes charged.

82. Defendants P.O. AVELLA and P.O. MORALES committed the foregoing acts intentionally, willfully, and maliciously, and are therefore liable for punitive damages.

SIXTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress
(Against the Individual Defendants)

83. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

84. Defendants P.O. AVELLA and P.O. MORALES, through the foregoing acts, did commit extreme and outrageous conduct and thereby intentionally, and/or recklessly caused Plaintiff to experience severe mental and emotional distress, pain, suffering, and damage to name and reputation.

85. Defendants P.O. AVELLA and P.O. MORALES committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

SEVENTH CAUSE OF ACTION
Negligence
(Against the Individual Defendants)

86. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

87. Defendants P.O. AVELLA and P.O. MORALES owed Plaintiff a duty of care, including the duty to exercise due care in-the-course-of their duties as NYPD officers and the duty to protect citizens from the intentional misconduct of other NYPD officers.

88. Defendants P.O. AVELLA and P.O. MORALES, by the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

89. All of these acts were performed without any negligence on the part of Plaintiff and were the proximate cause of injuries to Plaintiff.

EIGHTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress
(Against the Individual Defendants)

90. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

91. As police officers acting in the performance of their duties, defendants P.O. AVELLA and P.O. MORALES owed Plaintiff a duty of care.

92. In breach of that duty, defendants P.O. AVELLA's and P.O. MORALES' foregoing conduct endangered Plaintiff's safety and caused him to fear for his safety.

93. As a result, Plaintiff suffered emotional distress.

NINTH CAUSE OF ACTION
(Respondeat Superior)
Against Defendant City of New York

94. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

95. At all relevant times, defendants P.O. AVELLA and P.O. MORALES were employees of the City and were acting within the scope of their employment.

96. The CITY is therefore vicariously liable under the common law doctrine of *respondeat superior* for the actions of defendants P.O. AVELLA and P.O. MORALES set forth herein.

DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from defendants P.O. AVELLA and P.O. MORALES to the extent allowable by law;
- (c) attorney's fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
February 26, 2018

BELDOCK LEVINE & HOFFMAN LLP
99 Park Avenue, Suite 2600
New York, New York 10016
(212) 490-0400
/s/Marc A. Cannan
Marc A. Cannan

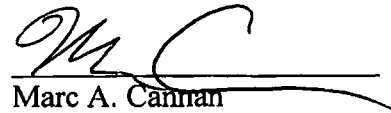
Attorneys for Plaintiff David Schlett

VERIFICATION

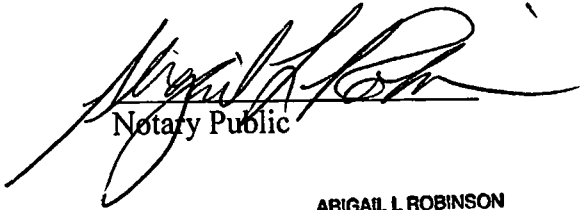
STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

I, Marc A. Cannan, being duly sworn, state:

I am the attorney for the Plaintiffs in this action. The foregoing Complaint is true to my knowledge except as to those matters therein stated on information and belief and as to those matters I believe them to be true. Pursuant to CPLR § 3020(d)(3), the verification is not made by Plaintiff David Schlett because he is not in the county where I have my office.


Marc A. Cannan

Sworn to before me this
26 day of February, 2018.


Notary Public

ABIGAIL L ROBINSON
Notary Public, State of New York
No. 01RO6322217
Qualified in Queens County
Commission Expires 03/30/2019